

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
LUIS GUZMAN,

Plaintiff,

-against-

Plaintiff designates

Bronx County as the place of trial

The basis of the venue is where the
tort arose and where the plaintiff
resides

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, IRIE
HUMPHREY, JODI M. BROWN, UNDERCOVER
OFFICER NO. 348, ROBERTO TORIBIO and JOHN or
JANE DOE 1-10,

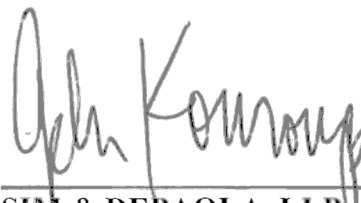
SUMMONS

Defendants.
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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York.
October 9, 2019



SIM & DEPAOLA, LLP

By: John K. Kouroupas, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

DET. IRIE HUMPHREY OF NARCB BX
Shield Number 4680, Tax ID No. 928504
1 POLICE PLAZA
NEW YORK, NEW YORK 10038

UNDERCOVER OFFICER NO. 348
1 POLICE PLAZA
NEW YORK, NEW YORK 10038

DET. ROBERTO TORIBIO OF NARCB BX
Shield Number 3100, Tax ID No. 948148
1 POLICE PLAZA
NEW YORK, NEW YORK 10038

DET. JODI M. BROWN OF NARCB BX
Shield Number 4057, Tax ID No. 936246
1 POLICE PLAZA
NEW YORK, NEW YORK 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
LUIS GUZMAN,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, IRIE
HUMPHREY, JODI M. BROWN, UNDERCOVER
OFFICER NO. 348, ROBERTO TORIBIO and JOHN or
JANE DOE 1-10,

Defendants.
-----X

Plaintiff, LUIS GUZMAN, by his attorneys, Sim & DePaola, LLP, for his complaint against
the above Defendants, alleges as follows:

1. The claim arises from a July 20, 2018 incident in which defendants, acting under color of
state law, unlawfully arrested and detained LUIS GUZMAN ("Mr. Guzman"). Plaintiff
was subsequently charged with Criminal Sale of a Controlled Substance, Criminal Sale of
a Controlled Substance In or Near School Grounds, Criminal Possession of a Controlled
Substance in the Seventh Degree and Resisting Arrest. As a result, Mr. Guzman was
deprived of his liberty, and caused to sustain physical and emotional injuries. Mr.
Guzman was wrongfully incarcerated for approximately two (2) days or approximately
twenty-three (23) hours, until he was released, on or about July 21, 2018 at
approximately 12:00 PM, after being arraigned. All criminal charges stemming from this
incident were dismissed on July 3, 2019.

2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

3. Plaintiff LUIS GUZMAN ("Mr. Guzman") resides at 2570 Briggs Avenue, Apt. 3B, Bronx, NY 10458.
4. The Defendant City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD") is responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Irie Humphrey ("Humphrey") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Humphrey was, at all times relevant herein, a detective, Shield No. 4680 and Tax ID. No. 928504 of NARBBX, located at 1 Police Plaza, New York, New York, 10038. Defendant Humphrey is being sued in his individual and official capacities.

8. Defendant Undercover Officer (“UC 348”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. At this time, Plaintiff does not know the true name and/or tax registration number of Defendant UC 348 but is within knowledge of the defendants. Defendant Undercover Police Officer is being sued in his individual and official capacities.
9. Defendant Jodi M. Brown (“Brown”) was, at all times here relevant, a police officer or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Brown was, at the times relevant herein, a Detective under Shield #4057, Tax ID No. 936246 in the NARCB BX, located at One Police Plaza, New York, New York 10038. Defendant Brown is being sued in his individual and official capacities.
10. Defendant Roberto Toribio (“Toribio”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Toribio was, at all times relevant herein, a detective, Shield No. 3100 and Tax ID. No. 948148 of NARBBX, located at 1 Police Plaza, New York, New York, 10038. Defendant Toribio is being sued in his individual and official capacities.
11. At all times relevant Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1 through 10 but is within knowledge of the defendants.

12. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1 through 10 are being sued in their individual and official capacities.
13. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
14. Within 1 year and 90 days of accrual dates for the claims for assault, battery and excessive force, false arrest, false imprisonment, etc. Plaintiff timely filed a petition for an order granting leave to have the Notice of Claim of the Plaintiff served upon the Defendant, the city, which were filed on April 23, 2019, deemed timely served *nunc pro tunc*.
15. Over 30 days have elapsed since the filing of this notice, and this matter has not been settled or otherwise disposed of.
16. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
17. This action and associated claims have been timely commenced within all applicable statutes of limitations.

FACTUAL CHARGES

18. Mr. Guzman is a black male, who speaks English.
19. On July 20, 2018, at approximately 1:58 P.M., Mr. Guzman was walking to the D train at the Kingsbridge Station in the vicinity of the Southwest corner of East Kingsbridge Road and Grand Concourse, County of Bronx, State of New York.

20. On said date, time and location, Defendants, including Humphrey, Toribio, Brown, UC 348, and John/Jane Doe 1-7, unlawfully approached Mr. Guzman without a lawful reason to do so, as he was merely on his way to the train.
21. Defendants, including Humphrey, Toribio, Brown, UC 348, and John/Jane Doe 1-7, then yelled at Mr. Guzman to get against the wall without any reason or justification.
22. Defendants, including Humphrey, Toribio, Brown, UC 348, and John/Jane Doe 1-7, then violently grabbed Mr. Guzman from behind and forcefully slammed him against the wall without any reason or justification.
23. Defendants, including Humphrey, Toribio, Brown, UC 348, and John/Jane Doe 1-7, then violently slammed Mr. Guzman on the ground without any reason or justification.
24. Defendants, including Humphrey, Toribio, UC 348, Brown, and John/Jane Doe 1-7, then punched Mr. Guzman in his face several times without any probable cause or justification.
25. Defendants, including Humphrey, Toribio, UC, and John/Jane Doe 1-7, fabricated a narrative in which they alleged Mr. Guzman handed an individual four (4) bags of cocaine which were allegedly picked up by Brown, UC 348, when they knew such claim was untrue and a complete fabrication.
26. Mr. Guzman had not committed any crimes or violations of the law.
27. Defendants, including Humphrey, Toribio, Brown, UC 348, and John/Jane Doe 1-7, then illegally placed handcuffs on Mr. Guzman without any probable cause or justification.
28. Defendants, including Humphrey, Toribio, Brown, UC 348, and John/Jane Doe 1-7, committed multiple assaults and batteries to Mr. Guzman, including but not limited to, being handcuffed too tightly, forcibly grabbed, pushed, slammed and punched in his face, which caused bleeding from his hands and knees, bruises on his right eye and a busted lip.

29. As a result of Defendants', including Humphrey, Toribio and Brown, UC 348's, knowingly and intentionally false statements and allegations, Mr. Guzman was falsely arrested under arrest number B18633002.
30. Defendant Humphrey was Mr. Guzman's arresting officer, who perjuriously signed the criminal complaint against plaintiff, despite being fully aware plaintiff was innocent of every allegation therein.
31. Defendant UC 348 falsely claimed that plaintiff sold crack-cocaine for money on July, 2018.
32. Defendant UC 348 never observed plaintiff sell any cocaine, on July 6, 2018, July 20, 2018, or any other day and UC 348, along defendants Toribio, Brown and Humphrey each fabricated various lies about plaintiff to forward to the DA's Office, so that plaintiff would be prosecuted and defendants would be praised.
33. Defendants, including Humphrey, Toribio and Brown, UC 348 were fully aware that no controlled substance or cocaine was found, but knowingly and intentionally chose to state otherwise to justify and excuse an otherwise invalid arrest.
34. Defendant Toribio fabricated a completely made-up story-line that Mr. Guzman "flailed his arms, kicked his legs, and twisted his body," when defendant Toribio attempted to handcuff plaintiff.
35. Mr. Guzman never resisted arrest and he committed any crimes to justify his arrest.
36. Mr. Guzman was never in actual, constructive or statutory possession of any controlled substance or cocaine, as no controlled substance or marijuana was found.
37. Plaintiff was then unlawfully put in a police van and transported to a local precinct.

38. Upon arrival at the police precinct, Defendants, including Humphrey, Toribio and Brown, subjected Mr. Guzman to an illegal strip search with a cavity inspection without reasonable suspicion or probable cause to believe he had secreted contraband on his person.
39. After being held in the precinct for several hours, Mr. Guzman was unlawfully sent to Central Booking for crimes he did not commit.
40. In Central Booking, Mr. Guzman was illegally fingerprinted and photographed.
41. Defendants, including Humphrey, Toribio and Brown, UC 348, intentionally provided said false information to the Bronx County District Attorney's Office, so that a criminal prosecution would be initiated against Mr. Guzman, namely that plaintiff exchanged crack-cocaine for money, was in possession of crack-cocaine and that he flailed his arms and kicked to avoid being arrested.
42. At no point did Defendants, including Humphrey, Toribio and Brown, UC 348, ever observe Mr. Guzman commit any crime or offense.
43. At no point were the defendants, including Humphrey, Toribio and Brown, UC 348, ever told by any witnesses that Mr. Guzman committed any crime or violation of the law.
44. Defendants, including Humphrey, Toribio and Brown, UC 348, never possessed a legally issued arrest warrant for plaintiff's arrest.
45. Defendants, including Humphrey, Toribio and Brown, UC 348, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely stopping, searching and arresting an individual illegally without a search warrant, probable cause or reasonable suspicion, due to no controlled substance being found.

46. Defendants have displayed a pattern and practice of falsely alleging a controlled substance or cocaine to be found to justify otherwise unwarranted arrests.
47. Defendants have displayed a pattern and practice of fabricating false narratives to arrest innocent individuals.
48. Plaintiff was wrongfully incarcerated for approximately two (2) days or approximately twenty-three (23) hours, until he was released on or about July 21, 2018.
49. Plaintiff was forced to return to court to appear on the false charges levied against him, until all the charges were dismissed.
50. All criminal charges stemming from this incident were dismissed on July 3, 2019.
51. During all of the events described, the Defendants, including Humphrey, Toribio and Brown, UC 348, acted maliciously and with intent to injure Plaintiff.
52. Defendants Humphrey, Toribio and Brown, UC 348 were fully aware that there was no probable cause to believe a prosecution would succeed against Mr. Guzman, because Defendants Humphrey, Toribio and Brown, UC 348 were fully aware that all of the evidence against plaintiff was fraudulent or fabricated out of thin air.
53. At all times relevant hereto, Defendants, including Humphrey, Toribio, Brown, UC 348, and John/Jane Doe 1-7, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
54. Plaintiff asserts that the defendants, including Toribio, Brown, Humphrey and UC 348, who violated plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has

become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

55. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.
56. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. The following are titles and brief descriptions of various articles, detailing the magnitude and overwhelming prevalence of incidents, in which NYPD officers were caught lying, including instances that resulted in the arrest and imprisonment of innocent people. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculpated via some incontrovertible form of evidence.

57. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.
58. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

59. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.
60. Other articles include: (i) “Testilying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.
61. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging

- that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.
62. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiff's arrest without probable cause.
63. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.
64. Defendants' actions, pursuant to plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.
65. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective

policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of defendants, the NYPD and City of New York.

66. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.
67. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including defendant Toribio, Brown, Humphrey and UC 348.
68. As a direct and proximate result of the acts of the defendants, including Humphrey, Toribio and Brown, UC 348, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and

suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

- 69. The above paragraphs are here incorporated by reference as though fully set forth.
- 70. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
- 71. Plaintiff was conscious of his confinement.
- 72. Plaintiff did not consent to his confinement.
- 73. Plaintiff's arrest and false imprisonment was not otherwise privileged.
- 74. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
- 75. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
- 76. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

- 77. The above paragraphs are here incorporated by reference as though fully set forth.
- 78. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

79. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
80. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
81. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
82. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

83. The above paragraphs are here incorporated by reference as though fully set forth.
84. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
85. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
86. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
87. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
88. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

- 89. The above paragraphs are here incorporated by reference as though fully set forth.
- 90. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
- 91. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
- 92. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
- 93. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

- 94. The above paragraphs are here incorporated by reference as though fully set forth.
- 95. Defendants initiated the prosecution against Plaintiff.
- 96. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
- 97. Defendants acted with malice.
- 98. The prosecution was terminated in Plaintiff's favor when the criminal charge was dismissed and sealed.
- 99. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
101. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

102. The above paragraphs are here incorporated by reference as though fully set forth.
103. Defendants initiated the prosecution against Plaintiff.
104. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
105. Defendants acted with malice.
106. The prosecution was terminated in Plaintiff's favor when he all charges were dismissed and sealed.
107. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
109. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

110. The above paragraphs are here incorporated by reference as though fully set forth.
111. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

112. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
113. Defendants intended to inflict substantial harm upon Plaintiff.
114. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
115. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
116. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
117. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

118. The above paragraphs are here incorporated by reference as though fully set forth.
119. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
120. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
121. Defendants intended to inflict substantial harm upon Plaintiff.
122. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
123. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.

124. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

125. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION
Denial of Right to Fair Trial Under
New York State Law

126. The above paragraphs are here incorporated by reference as though fully set forth.

127. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the New York County District Attorney's Office.

128. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement.

129. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Sixth Amendment to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

130. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

131. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

132. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

133. The above paragraphs are here incorporated by reference as though fully set forth.
134. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the New York County District Attorney's Office.
135. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement.
136. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Sixth Amendment to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.
137. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
138. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

139. The above paragraphs are here incorporated by reference as though fully set forth.
140. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

141. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
142. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
143. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

144. The above paragraphs are here incorporated by reference as though fully set forth.
145. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
146. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
147. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
148. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRTEENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

149. The above paragraphs are here incorporated by reference as though fully set forth.
150. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

151. Defendant City breached those duties of care.
152. Defendant City placed defendants in a position where they could inflict foreseeable harm.
153. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
154. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
155. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
156. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

157. The above paragraphs are here incorporated by reference as though fully set forth.
158. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.
159. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

160. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with defendant City's employees.
161. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.
162. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.
163. Defendant City's conduct caused the violation of plaintiff's civil rights enumerated within the Constitution of the United States.
164. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
165. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

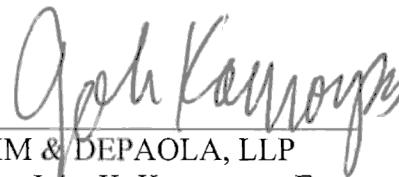
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

p) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;

Together with the costs and disbursements of this action.

Dated: Bayside, New York
October 9, 2019

Respectfully submitted,



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ATTORNEY VERIFICATION

I, John K. Kouroupas, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
October 9, 2019



JOHN K. KOUROUPAS, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LUIS GUZMAN,

Plaintiff,

-against-

CITY OF NEW YORK, individually and in their official capacities as New York City police officers, IRIE HUMPHREY, JODI M. BROWN, UNDERCOVER OFFICER NO. 348, ROBERTO TORIBIO and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
By: JOHN K. KOUROUPAS
Attorneys for Plaintiff(s)
42-40 Bell Boulevard, Suite 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for